

26CV01130 Jesus Ernesto Flores v. DCOR, LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-24

Motion: Motion of Defendant DCOR, LLC, to Compel Arbitration

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Tentative Ruling: Jesus Ernesto Flores v. DCOR, LLC

Case Number

26CV01130

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/24/2026 - 10:00

Nature of Proceedings

Motion of Defendant DCOR, LLC, to Compel Arbitration

Tentative Ruling

For Plaintiff Jesus Ernesto Flores: Kevin A. Lipeles, Thomas H. Schelly, Jasmine J. Badawi, Lipeles Law Group, APC

For Defendant DCOR, LLC: Bryan L. Hawkins, Robert Sarkisian, Kyndall Banales, Stoel Rives LLP

RULING

For all reasons stated herein, the motion of Defendant DCOR, LLC, to compel arbitration is granted. The individual claims alleged by Plaintiff Jesus Ernesto Flores are ordered to arbitration pursuant to the parties' arbitration agreement. This action is stayed pending the completion of the arbitration proceedings.

Background:

On February 19, 2026, Jesus Ernesto Flores initiated this action by filing a class action complaint against Defendant DCOR, LLC (DCOR), setting forth eight causes of action for violations of the Labor Code as to overtime, minimum wages, meal breaks, rest breaks, wage statements, reimbursement of business expenses, failure to pay wages at termination, and failure to permit records inspection, as well as unfair competition under Business and Professions Code section 17200, et seq. As alleged in the complaint, Plaintiff and similarly situated employees of DCOR who worked at oil platform operations in Carpinteria and in other locations in Santa Barbara County were subjected to these wage and hour violations.

On April 10, 2026, DCOR filed a motion to compel arbitration. The motion seeks an order compelling the individual claims in this action to arbitration pursuant to the parties' arbitration agreement and dismissing or staying this pending action in Court. On June 10, 2026, Plaintiff filed a notice of non-opposition stating that, "Plaintiff JESUS ERNESTO FLORES does not oppose Defendant DCOR, LLC's Motion to Compel Arbitration currently set for hearing on June 24, 2026, at 10:00 a.m. in Department 3 of the above-entitled Court." (Non-Opp., p. 1, ll. 23-25.)

Analysis

"Private arbitration is a matter of agreement between the parties" (Platt Pacific, Inc. v. Andelson (1993) 6 Cal.4th 307, 313.) "There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate.... Whether the parties formed a valid agreement to arbitrate is determined under general California contract law. [Citation.] Hence, when ruling on a petition to compel arbitration, the superior Court may consider evidence on factual issues such as contract formation bearing on the threshold issue of arbitrability." (City of Vista v. Sutro & Co. (1997) 52 Cal.App.4th 401, 407.) "Under 'both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.' " (Fleming v. Oliphant Financial, LLC (2023) 88 Cal.App.5th 13, 19.)

"The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate a dispute exists." (Trinity v. Life Ins. Co. of North America (2022) 78 Cal.App.5th 1111, 1120.) "It is essential to the existence of a contract that there should be: [¶] 1. Parties capable of contracting; [¶] 2. Their consent; [¶] 3. A lawful object; and, [¶] 4. A sufficient cause or consideration." (Civ. Code, § 1550.)

"The consent of the parties to a contract must be: [¶] 1. Free; [¶] 2. Mutual; and, [¶] 3. Communicated by each to the other." (Civ. Code, § 1565.) "Consent is not mutual, unless the parties all agree upon the same thing in the same sense...." (Civ. Code, § 1580.) "The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe. [Citation.] Accordingly, the primary focus in determining the existence of mutual consent is upon the acts of the parties involved." (Monster Energy Co. v. Schechter (2019) 7 Cal.5th 781, 789 (Monster).) If consent to arbitrate is established, subject to certain exceptions, "the Court shall order the petitioner and the respondent to arbitrate the controversy" (Code Civ. Proc., § 1281.2.)

The arbitration agreement (Agreement) provides in part as follows: "The Company and the undersigned Employee hereby agree that any dispute ... arising out of or in any way related to Employee's application for employment and employment with the Company shall be resolved by mandatory, binding arbitration before a retired judge or other arbitrator selected by mutual agreement of the Company and the Employee." (Eastman Decl., Ex. A. at p. 1.) DCOR submits evidence that the Agreement was signed by Plaintiff and a representative of DCOR. (Eastman Decl., ¶¶ 2-6, Ex. A at p. 3.)

Moreover, the Agreement provides as follows pertaining to waiver of representative actions: "Except as otherwise required by applicable law, the parties agree that ... all such claims shall be conducted on an individual basis, and not as a joint action, class action ... or any other representative and/or collective action or claim...." (Eastman Decl., Ex. A at p. 2.) Under the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), class action waivers are not categorically invalid. (See Franco v. Arakelian Enterprises, Inc. (2015) 234 Cal.App.4th 947, 956 [FAA]; Garrido v. Air Liquide Industrial U.S. LP (2015) 241 Cal.App.4th 833, 845 [CAA].) Plaintiff presents no argument that this provision is invalid or unconscionable.

DCOR has carried its burden to demonstrate mutual assent to arbitrate the individual claims in this action pursuant to the parties' arbitration Agreement. (See Eastman Decl., ¶¶ 2-6, Ex. A; Civ. Code, §§ 1550, 1565; *Monster*, supra, 7 Cal.5th at p. 789.) In addition, the Court construes the notice of non-opposition by Plaintiff as a concession that the motion has merit and the relief sought by DCOR should be granted. (Non-Opp., p. 1, ll. 23-25.) For all the reasons stated herein, the Court will grant DCOR's motion, order the individual claims in this action to arbitration pursuant to the terms of the arbitration Agreement, and stay this action in Court pending the completion of the arbitration proceedings. (See Code Civ. Proc., §§ 1281.2, 1281.4; see also 9 U.S.C. § 3.)

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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